Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: July 15, 2026

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#	Case Name	Tentative
1.	2024-1401357 Knutson vs. Coldwell Banker Residential Brokerage Company	The Court, on its own motion, advances the motion to be relieved as counsel of Plaintiff, Sharon Knutson. The motions of Alexander Conti, counsel of record for plaintiffs Sharon Knutson and Todd Knutson, for orders relieving him as counsel for each of Plaintiffs are granted. [ROA ## 52, 57.] The court will interlineate the new trial date into the proposed orders and delete references to the prior date and will sign the amended orders. Upon the signing of the orders, counsel shall serve the signed order on each of Plaintiffs and all parties that have appeared. Counsel will be relieved as counsel of record for each of Plaintiffs effective upon the filing of the proofs of service of the signed orders upon each of Plaintiffs and all other parties.
2.	2025-1488642 Swannie vs. Swannie	Defendant Pacific Dealer Center, Inc.'s motion for relief from the default entered against it in this action is granted. Code Civ. Proc. §473(b), (d).

Facts
This is a derivative action brought against Mark Swannie, an officer and director of Pacific Dealer Center for misuse of corporate asserts. [Complaint (ROA #2).] Pacific Dealer Center is a nominal defendant. [*Id.*] Trial is set for 2/22/27.

Mark Sannie was personally served and has answered. [ROA ## 10, 12.]

According to the proof of service filed, Pacific Dealer Center was served on 11/24/25 by substitute service on its CEO, Peter Dames. [ROA #33.] Plaintiff requested and obtained Pacific Dealer Center's default on 1/13/26. [ROA #41.]

According to Mark Swannie, director and 60% owner of Pacific Dealer Center, Peter Dames is not and never has been associated with Pacific Dealer Center. Confused by an envelope addressed to Peter Dames, Mark Swannie did not understand Pacific Dealer Center had been sued or that any action was required. He obtained counsel for Pacific Dealer Center as soon as default was entered. [Swannie Decl. (ROA #53), ¶¶ 1-9.]

Discussion
The law favors a trial on the merits, and doubts in applying Code Civ. Proc. § 473 are resolved in favor of the party seeking relief from default. *Iott v. Franklin* (1988) 206 Cal.App.3d 521, 526. If a party moves promptly for default relief, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), only *slight* evidence will justify an order granting such relief. *Ibid.*

"Because the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.' [Citations.]" *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980; *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696 (citations omitted).

> The most fundamental of those principles is that affirmed in *Au–Yang v. Barton* (1999) 21 Cal.4th 958, 963, 90 Cal.Rptr.2d 227, 987 P.2d 697: " '[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.' " (*Ibid.*, Citing among other cases, *Weitz v.*

		Yankosky (1966) 63 Cal.2d 849, 855, 48 Cal.Rptr. 620, 409 P.2d 700 (*Weitz*).) *Id.* *<u>Code Civ. Proc. § 473(b)</u>* Defendant moves for relief under Code of Civil Procedure section 473(b). Code of Civil Procedure section 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of "mistake, inadvertence, surprise or excusable neglect A motion seeking relief under section 473(b) must be brought within six months of entry of the judgment. Code Civ. Proc. § 473(b). A proposed answer or other responsive pleading is to be filed with the motion for relief. *Id.* Pacific Dealer Center's motion is timely and a proposed answer is provided. [*See* Motion, Ex. 2.] Mark Swannie's declaration supports relief on the basis of mistake. He was mistaken as to whether Pacific Dealer Center needed to respond based on documents directed to Peter Dames, a person not affiliated with Pacific Dealer Center. To the extent the failure to forward the complaint to counsel was neglect, under these circumstances it was excusable neglect. *<u>Code Civ. Proc. §473(d)</u>* Defendant also moves for relief under Code of Civil Procedure section 473(d). Under section 473(d), "[t]he court may, ... on motion of either party after notice to the other party, set aside any void judgment or order." Generally, defendants have six months from entry of judgment to move to vacate. Code Civ. Proc. § 473(b). When a motion to vacate the judgment is based on lack of valid service, it is the plaintiff's burden to establish proper service. *Dill v. Berquist Construction Co.,* 24 Cal.App.4th 1426, 1441. As long as the proof of service reveals the jurisdictional defect, the defendant need not make any evidentiary showing. *Ibid.* The plaintiff may then defend the judgment with "affidavits or other evidence that goes beyond the judgment roll as set forth in section 670, subdivision (a)." *Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434, 1440. The court of appeal reviews the trial court's findings as to matters beyond the judgment roll for substantial evidence (*Shamblin v. Brattain* (1988) 44 Cal.3d 474,

		479), deferring to the trial court's resolution of disputed facts and assessment of witness credibility. *Pope v. Babick* (2014) 229 Cal.App.4th 1238, 1245-1246. If the trial court makes no express findings on a particular issue, the court of appeal will imply findings in favor of the trial court's ruling if they are supported by substantial evidence. *Fair v. Bakhtiari* (2011) 195 Cal.App.4th 1135, 1148-1149. A summons may be served on a corporation by personal delivery to the agent for service of process, the president, CEO or "other head of the corporation," vice president, secretary, assistant secretary, treasurer, assistant treasurer, controller or CFO of the corporation. Code Civ. Proc. § 416.10(a), (b). Or substitute service may be made by leaving the summons and complaint with a person apparently in charge and mailing a copy to the same address. Code Civ. Proc. 415.20(a). Here, Plaintiff did not serve the complaint on Pacific Dealer Center's agent for service of process, the president, CEO or "other head of the corporation," vice president, secretary, assistant secretary, treasurer, assistant treasurer, controller or CFO of the corporation. The complaint and summons were addressed to someone else entirely (someone called Peter Dames) and left with an office manager. Service on Pacific Dealer Center was therefore not proper. In the absence of opposition, Plaintiff has not met her burden of showing proper service. Accordingly, the motion for relief from default is granted.
3.	2023-1356907 Hook vs. Rocha	Cross-Complainant Live Nation Worldwide Inc.'s ("Live Nation") Motion for leave to file an amended cross-complaint is granted. By the proposed pleading, Live Nation seeks leave to add causes of action for breach of contract and express indemnity against Defendant S & S Labor Force dba JRM Private Security ("JRM"), and add JRM to already-pleaded causes of action for equitable indemnity, contribution, and declaratory relief. Under Code of Civil Procedure section 473, subdivision (a)(1), "[t]he court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." The amendment of pleadings is also permitted under Code of Civil Procedure section 576, "at any time before or after commencement of trial, in the furtherance of justice, and upon such

		terms as may be proper.” (Code Civ. Proc., § 576.) While this discretion will generally be exercised liberally to permit amendment of the pleadings, the court acts within its discretion to deny an amendment where there has been a long delay in seeking the amendment and allowing the amendment would be prejudicial to the opposing side. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 488.) Here, Live Nation has substantially complied with the requirements of California Rules of Court, rule 3.1324. JRM opposed Live Nation’s ex parte application seeking advancement of the hearing on the instant motion. Within that opposition, the JRM argued prejudice because of the trial date. (ROA 332.) However, in response to that argument, the Court continued the trial date to allow for additional discovery. (ROA 334.) JRM provides no further opposition. Thus, the Motion is granted. Live Nation shall electronically file the first amended cross-complaint within 10 days pursuant to the Code of Civil Procedure. Live Nation shall serve notice of this Order.
4.	2023-1332366 Adorn Premiums LLC vs. J Style Premiums, LCC	Plaintiffs Adorn Premiums, LLC’s and Joshua Ivey’s motion to continue the trial date is denied as moot. On 4/6/26, the Court continued trial on its own motion to Tuesday, February 16, 2027. Court orders clerk to give notice.
5.	2024-1417627 Sullivan vs. Hawkins	Judgment debtor Shelley Hawkins’ Claim of Exemption is granted. Judgment Debtor claims the funds levied from her Schools First Federal Credit Union accounts are exempt. The Court has considered the Claim of Exemption, which was made under penalty of perjury, the supporting documents, and the Notice of Opposition to Claim of Exemption, and determines the claim of exemption should be granted in its entirety. (Code Civ. Proc., §§ 704.190, 704.220, 704.225.) The Court hereby orders the levying officer to return the levied property within 20 business days of receipt of notice of the order. (Code Civ. Proc., § 703.580, subd. (d)(4).)

		The Clerk shall promptly transmit a certified copy of this order to the levying officer (Code Civ. Proc., § 703.580, subd. (e)) and give notice of the ruling.
6.	2025-1524146 Salgado vs. Orange County Transportation Authority (OCTA)	Defendant Orange County Transportation Authority's ("OCTA") demurrer to Plaintiff Jose Salgado's First Amended Complaint is sustained with 15 days leave to amend. Defendant's special demurrer is overruled. The First Amended Complaint is not so confusing that Defendant cannot determine how to respond. (See *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616; *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) <u>1st cause of action for motor vehicle negligence</u> The Government Tort Claims Act provides that public entities are not liable for an injury except as otherwise provided by statute. (Gov't Code § 815(a); see also *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183 ("direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714," which provides for liability based on willful or negligent acts.).) This cause of action is not based on any statute. While Plaintiff cites to Vehicle Code § 17001 in his opposition, this is not identified in the First Amended Complaint as a basis for liability. <u>2nd cause of action for Gov't Code, § 815.2 liability</u>

		Gov. Code, § 815.2 provides in part that a "public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." Here, Plaintiff alleges only that DOE Bus Driver, as an employee of Defendant OCTA was acting within the course and scope of his employment, when he "recklessly and carelessly operated the [OCTA bus]," "failing to follow the proper procedures and guidelines with regard to safely transporting passengers and following safe driving techniques, causing Plaintiff to sustain injuries including but not limited to his left hand, left shoulder, left elbow, and neck." Plaintiff fails to state facts to support this claim as he does not allege what actually happened to cause Plaintiff's injuries. Claims against government entities must be pled with particularity. (See *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.) <u>3rd cause of action for common carrier liability pursuant to Civ. Code, § 2100, 2101 and 2103</u> Like with the second cause of action, Plaintiff fails to allege facts showing how Defendant violated the identified statutes. In addition, these statutes do not confer liability on Defendant OCTA. As Defendant puts it, there is no recognized cause of action that may be stated based on alleged violation of the Civil Code sections alone. Based on the foregoing, the general demurrer is sustained with leave to amend as to each of the three causes of action in Plaintiff's First Amended Complaint. Defendant shall give notice.
7.	2025-1517383 Skallerud vs. Petsmart LLC	Defendant Petsmart LLC's demurrer to the third cause of action for bad faith denial of claim in plaintiff Robert Skallerud's first amended complaint ("FAC") is sustained with 15 days leave to amend. [ROA # 59.] <u>Plaintiff's Complaint</u> This is essentially an action to recover for personal injury suffered by Plaintiff when he slipped and fell at a Petsmart. [FAC, ¶ GN-1.] Plaintiff asserts claims for negligence and premises liability on this basis. [FAC, first and second causes of action.]

		Plaintiff also alleges that after this accident the third-party insurance claim handler for Petsmart intentionally delayed and denied the claim in bad faith. [FAC, ¶ IT-1.] Based on this allegation, Plaintiff asserts a claim for bad faith denial of his claim. [FAC, ¶ 10.f. and third cause of action.] <u>Legal Standard</u> A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. Limited to the "four corners" as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413. On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967. A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *People v. Lim* (1941) 18 Cal. 2d 872, 883. "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." *Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 616. Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. *Saunders v. Cariss* (1990) 224 Cal. App. 3d 905, 908. A party attacking a pleading on "uncertainty" grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. *Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300). <u>Discussion</u> *Third Cause of Action for Intentional Tort/Bad Faith Denial of Claim* Tortious claims for bad faith are actions peculiar to insurance companies and their insureds. A third party (that is, someone not insured under the policy) has no standing to sue for bad faith. *Seretti v. Superior Nat. Ins. Co.* (1999) 71 Cal.App.4th 920, 929 ("

		'Whether for better or worse ... liability for 'bad faith' has been strictly tied to the implied-in-law covenant of good faith and fair dealing arising out of an underlying contractual relationship. Where no such relationship exists, no recovery for 'bad faith' may be had. [Citation.] [¶] [Thus], an insurer's duty of good faith and fair dealing is owed solely to its insured and, perhaps, any express beneficiary of the insurance policy.' (*Austero v. National Cas. Co.* (1976) 62 Cal.App.3d 511, 516–517.)"). The insurer's duty of good faith arises out of the policy that requires it to protect the insured's interest as well as its own – which means that an insurance company is required to investigate *an insured's* claim in good faith. *Mariscal v. Old Republic Life Ins. Co*. (1996) 42 Cal.App.4th 1617, 1620, 1623 ("Insureds seek protection against calamity and purchase insurance to buy peace of mind and security. . . . The insurer has a duty to protect the insured's interests as if it were its own, and it may not deny a claim without thoroughly investigating it." and "When investigating a claim, an insurance company has a duty to diligently search for evidence which supports its insured's claim. If it seeks to discover only the evidence that defeats the claim it holds its own interest above that of its insured.")(Citations omitted). When an insurance company does not investigate in good faith prior to denying a claim, it is subject to an action for bad faith. *See* CACI 2332. Here, Plaintiff is seeking to assert a bad faith claim against Petsmart based on the actions of its insurance claim handler. Plaintiff disputes the necessity of a contractual relationship in order to assert a claim for bad faith denial of claim. Rather, he contends, he may sue Petsmart for its agent's "independent, intentional tortious conduct committed during the administration of a claim." [Opp. (ROA #67) at 4:7-8.] Plaintiff alleges delays and failures to respond, and finally bad faith denial. [FAC, ¶ IT – 1.] But Plaintiff does not allege any duty owed by Petsmart to Plaintiff to investigate his claim diligently or in good faith. In his opposition, Plaintiff complains of repeated, false promises that he relied on. [Opp. at 4:12-14.] If Plaintiff was defrauded, he can allege a fraud cause of action. Otherwise, in the absence of allegations of fact showing Petsmart owed Plaintiff a duty of care in the handling of his claim against it, Plaintiff's claim for bad faith denial of claim fails.

		The general demurrer to the Plaintiff's third cause of action is therefore sustained. Accordingly, the court need not reach the demurrer for uncertainty.
8.	2025-1505314 Davenport vs. Akua Behavioral Health, Inc.	Defendant Akua Behavioral Health, Inc.'s motion to compel plaintiff Molly Davenport to arbitrate her claims in this action is denied. <u>Facts</u> *Plaintiff's Complaint* For her sexual harassment claim, Plaintiff alleges she was employed by Defendant as a case manager until she was promoted to program manager at an understaffed and disorganized program. Her requests for support were denied and Plaintiff suffered stress and health consequences requiring a medical leave. [First Amended Complaint ("FAC" – ROA #16), ¶¶ 9-17.] Upon Plaintiff's return, Defendant's vice president, Piyush Saluja began a romantic relationship with a new hire, Annalise Poe. As a result of this relationship, Poe was promoted to associate clinical director though she was unqualified. [FAC, ¶ 18.] At least two AKUA employees submitted written complaints to management and/or Human Resources regarding the inappropriate personal relationship between SALUJA and POE and the preferential treatment POE was receiving as a result of sexual favoritism. Within days of submitting their complaints, both employees that complained were terminated under the pretext of a "company-wide layoff." Plaintiff alleges these terminations were retaliatory and intended to suppress further reports or investigations into Saluja's and Poe's conduct. [FAC, ¶ 21.] These retaliatory terminations and Defendant's failure to investigate or correct the misconduct fostered an environment where employees reasonably believed that reporting or opposing the sexual favoritism between Saluja and Poe, which affected multiple employees, would result in punishment for those employees reporting the misconduct. [FAC, ¶ 34.] On 2/4/25, Plaintiff was informed by Saluja of a proposed Performance Improvement Plan (PIP), despite having no history of disciplinary issues. Management later offered to re-label it as a Performance Enhancement Plan (PEP), while also suggesting a demotion. Plaintiff voiced her readiness to meet all objectives but raised concerns about the process and intent of the Performance Enhancement Plan, suggesting that it was intended to punish Plaintiff and move her aside to clear the way for POE's advancement. Despite her cooperation, her name was removed from team spreadsheets and Human Resources issued threats of administrative action for Plaintiff not signing the Performance

Enhancement Plan. [FAC, ¶¶ 22, 23.] This abrupt action appeared intended to harass and intimidate Plaintiff into compliance and to discourage her from speaking out against the company and protesting the favoritism toward Poe. [FAC, ¶ 31.]

On 2/19/25, Plaintiff was abruptly terminated without prior warning. Defendant's owner delivered the news and stated he could not discuss Plaintiff's termination any further due to legal guidance. No prior complaints about Plaintiff's performance had been communicated to her and the termination appeared to be retaliatory. [FAC, ¶ 25.]

Plaintiff was subjected to a hostile work environment as defined in CACI 2521C when she was instructed to train Poe, who was engaged in a sexual relationship with Akua's Vice President, Saluja, on how to perform Plaintiff's own job responsibilities, despite Poe's lack of qualifications and minimal experience with the company. This directive, combined with POE's recent promotion, caused Plaintiff to fear for the security of her own position. Plaintiff is informed and believes that she was terminated, in part, due to the sexual favoritism exhibited by Saluja toward Poe. [FAC, ¶ 33.]

The combination of sexual favoritism, retaliatory terminations, and Defendant's failure to act made the harassment and hostility severe and pervasive throughout the workplace. This conduct unreasonably interfered with Plaintiff's work performance and created a work environment that was intimidating, oppressive, and abusive within the meaning of Government Code §12940(j). [FAC, ¶ 35.]

The Arbitration Agreement

In connection with her employment Plaintiff signed an arbitration agreement. [Gorden Decl. (ROA #31), ¶ 7; Motion MPA, Ex. A.]

The arbitration agreement applies to any dispute arising out of the employment relationship, though it expressly carves out claims under H.R. 4445 (Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021) for sexual harassment and sexual assault claim brought under federal, tribal, or state law. [Arbitration Agreement (Ex. A), ¶¶ 1, 2.] The arbitration agreement is governed by the Federal Arbitration Act ("FAA"). [*Id.*, ¶ 11.]

<u>Legal Standard</u>

Code Civ. Proc. § 1281.2 provides, *inter alia*:

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, <u>the court **shall** order the petitioner and the respondent to arbitrate the controversy</u>

		if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement. (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. …" (Emphasis added.) "'[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (*see* § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.'" *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal. App. 4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal. 4th 394, 413. While there is a policy in favor of arbitration and doubts are to be resolved in favor of arbitration, there is no public policy in favor of compelling persons to accept arbitration of controversies they have not agreed to arbitrate. *Victoria v. Superior Court* (1985) 40 Cal.3d 734, 739; *Mitri v. Arnel Management Co.* (2007) 157 Cal. App. 4th at 1170; *Greenspan v. LADT, LLC.* (2010) 185 Cal. App. 4th 1413, 1437. As a general rule, a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration. *Buckner v. Tamarin* (2002) 98 Cal. App. 4th 140, 142; *Benasra v. Marciano* (2001) 92 Cal. App. 4th 987, 990 ("The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration"). Discussion Defendant has shown, and Plaintiff does not dispute, the existence of an arbitration agreement. [Gorden Decl. (ROA #31), ¶ 7; Motion MPA, Ex. A.]

		The question is whether the arbitration agreement applies to Plaintiff's claims or is enforceable here given Plaintiff's claim for sexual harassment. The EFAA is codified at 9 USC § 402. It states: > Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute. (9 U.S.C.A. § 402(a).) The EFAA applies "with respect to any dispute or claim that arises or accrues on or after the date of enactment of this Act'; and it became effective on March 3, 2022. *Cornelius v. CVS Pharmacy Inc.* (3d Cir. 2025) 133 F.4th 240, 245–246, (citing Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021, Pub. L. 117-90, § 3, 136 Stat. 26, 28). California (and federal) courts have construed the EFAA to apply "where a plaintiff alleges a course of sexually harassing conduct that occurs both before and after the EFAA's enactment" (i.e., a "continuing violation"); and, that is makes the arbitration agreement unenforceable as to all causes of action that "relate to" the sexual harassment dispute, not just the claims that arise out of sexual harassment allegations. *Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 571, 577. In its moving papers, Defendants contends that the EEFA does not apply here (and Plaintiff's claims are not carved out under the terms of the arbitration agreement) because, according to Defendant, "the facts contained within the Amended Complaint do not constitute sexual harassment." [Motion MPA at 11:5-6 *et seq.*] Plaintiff disputes this in opposition. [Opp. (ROA #43) at 3-4, 8-9.] Defendant has filed no reply. "The merits of a claim cannot be considered in determining its arbitrability." Cal. Practice Guide: Alternative Dispute Resolution (The Rutter Group 2022) Chapter 5-E, ¶5:225. Additionally, "in deciding whether the parties have agreed to submit a particular grievance to arbitration, a court is not to rule on the potential merits of the underlying claims." *AT&T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 649-650.

Moreover, "sexual harassment dispute" is defined by the act as including "a dispute relating to conduct that is *alleged* to constitute sexual harassment under applicable Federal, Tribal, or State laws." 9 U.S.C. §401. Similarly, the exemption articulated in the EFAA applies "at the election of the person *alleging* conduct constituting a sexual harassment dispute or sexual assault dispute…" 9 U.S.C. §402.

The Court in *Yost v. Everyrealm, Inc.* (S.D.N.Y. 2023) 657 F.Supp.3d 563, held that "the EFAA is triggered by a complaint that plausibly pleads a claim of sexual harassment." *Id.* at 583. In referencing "plausibility" the court in *Yost* invoked the standard under Federal Rule of Civil Procedure, Rule 12(b)(6), which is similar to the standard on demurrer: "To survive a motion to dismiss under Rule 12(b)(6), a complaint must plead 'enough facts to state a claim to relief that is plausible on its face.'" *Id.* at 577. "A claim is facially plausible 'when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.'" (*Id.*) "A complaint is properly dismissed where, as a matter of law, 'the allegations in a complaint, however, true, could not raise a claim of entitlement to relief.'" *Id.*

Other District Courts, however, have found that the plaintiff's burden is lighter. That is, a plaintiff need not state a *cause of action* for sexual harassment but need *only allege conduct* that constitutes sexual harassment:

> Thus, to invoke the EFAA, a person subject to an arbitration agreement must allege (1) a dispute; (2) conduct and that such conduct, if established, constitutes sexual harassment pursuant to an applicable Federal, Tribal, or State law; and (3) that the dispute relates to such conduct.[12] The alleged conduct need not ultimately be found to actually constitute sexual harassment so long as the plaintiff alleges that the conduct constitutes sexual harassment.

Diaz-Roa v. Hermes Law, P.C. (S.D.N.Y. 2024) 757 F.Supp.3d 498, 536–537.

> For the EFAA to be applicable, the Court must first determine whether Plaintiff's allegations may invoke the EFAA. "[D]istrict courts in and outside the Ninth Circuit disagree as to the appropriate standard for determining 'the allegations that are necessary to invoke the EFAA in the first place and to determine whether the statute is applicable to the case.' " *Halle Van De Hey, Plaintiff, v. Epam Sys. Inc.*, 2025 WL 829604, at *3 (N.D.

> Cal. Feb. 28, 2025) (*quoting Diaz-Roa v. Hermes L., P.C.*, 757 F.Supp.3d 498, 533 (S.D.N.Y. 2024)). **Several district courts have read a "plausibility requirement into the EFAA that is not explicit in the statutory text.**" *Gill v. US Data Mgmt., LLC*, 2024 WL 5402494, at *3 (C.D. Cal. Dec. 2, 2024) (*citing Yost v. Everyrealm, Inc.*, 657 F. Supp. 3d 563, 585 (S.D.N.Y. 2023)). **Other district courts have rejected a plausibility requirement and instead held that a plaintiff need only plead nonfrivolous claims relating to sexual assault or sexual harassment**. *See, e.g., Diaz-Roa v. Hermes L., P.C.*, 757 F.Supp.3d at 533; *Solis v. Prime Comms Retail, LLC*, 2025 WL 1255143, at *2 (C.D. Cal. Apr. 7, 2025). In those cases, district courts were persuaded by the reasoning of *Diaz-Roa v. Hermes Law, P.C.*, which "persuasively highlights the dubiousness of adjudicating the plausibility of a sexual harassment claim upon a motion to compel arbitration, which is designed to test adjudicative capacity, not the merits or proper pleading of claims." *Gill*, 2024 WL 5402494, at *3 (citing *Diaz-Roa*, 757 F.Supp.3d at 533–543).

Brown v. Lululemon USA Inc. (C.D. Cal., Jan. 28, 2026, No. 2:25-CV-09629-WLH-AGR) 2026 WL 458644, at *3 (bold added).

Ultimately, this court need not decide which standard applies because Plaintiff's allegations meet both insofar as she does allege a cause of action for sexual harassment/hostile work environment. *Owens v. PriceWaterHouseCoopers LLC* (S.D.N.Y. 2025) 786 F.Supp.3d 831, 842 ("Because, as discussed below, the Court finds that Owens plausibly pleads sexual harassment under the NYCHRL, the Court need not weigh in on whether the appropriate standard in EFAA cases is the higher 12(b)(6) standard or Judge Liman's allegation standard. *See Brazzano*, 2025 WL 963114, at *7 ('[T]he question of whether the predominant view or Judge Liman's less stringent threshold is correct is irrelevant here: at least one of Brazzano's sexual harassment claims are plausible under *Twombly* and *Iqbal*.')").

An employee may establish an actionable claim of sexual harassment under the FEHA by demonstrating that widespread sexual favoritism was severe or pervasive enough to alter his or her working conditions and create a hostile work environment. *Miller v. Department of Corrections* (2005) 36 Cal.4th 446, 466. *See also* CACI 2521C.

		Plaintiff has alleged a romantic relationship between her superior and a new hire that resulted in favoritism severe and pervasive enough to result in retaliation against several other employees including Plaintiff when they complained about or did not cooperate with efforts to promote the new hire beyond her qualifications, which resulting in termination of those employees. Prior to her own termination, Plaintiff found the work environment created by these actions to be intimidating, oppressive, and abusive. The combination of sexual favoritism, retaliatory terminations, and Defendant's failure to act made the harassment and hostility severe and pervasive throughout the workplace. This conduct unreasonably interfered with Plaintiff's work performance and created a work environment that was intimidating, oppressive, and abusive within the meaning of Government Code §12940(j). [FAC, ¶ 35.] This is sufficient to allege a cause of action for sexual harassment. Accordingly, the motion to compel arbitration is denied.
9.	2026-1545921 King Shin Ship Management Co. vs. Beyond Loan 1 LLC	Defendants Beyond Loan 1, LLC and Beyond Liquidity, LLC's unopposed motion to compel arbitration and stay all proceedings is granted. The Federal Arbitration Act (FAA) provides that a "written provision in any . . . contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof . . . shall be valid, irrevocable and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) "The 'principal purpose' of the FAA is to 'ensur[e] that private arbitration agreements are enforced according to their terms.'" (*Lacayo v. Catalina Restaurant Group Inc.* (2019) 38 Cal.App.5th 244, 257, citing *AT&T Mobility LLC. v. Concepcion* (2011) 563 U.S. 333, 344, 131 S.Ct. 1740.) "California law, like federal law, favors enforcement of valid arbitration agreements." (*Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 721, citation omitted.) Arbitrations provisions are to be interpreted broadly and "should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1321, citations omitted.) "A party seeking to compel arbitration under CCP section 1281.2 must plead and prove (1) the existence of a written arbitration agreement and (2) that the other party has refused to arbitrate.

(Code Civ. Proc., § 1281.2.) The party "opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

Here, Defendants move for an order compelling arbitration of all causes of action against them in Plaintiff's complaint and for a stay of all proceedings. Defendants contend that all six causes of action asserted against them are subject to arbitration pursuant to (identical) arbitration provisions in the debenture agreements at issue. Specifically, Debenture No. 1 and Debenture No. 2 each contain the following provision:

> 15. Arbitration. Except as otherwise agreed to in writing by the Maker and the Holder, any claim, dispute, or controversy of whatever nature arising out of or relating to this [Debenture], including, without limitation, any action or claim based on tort, contract, or statute (including any claims of breach), or concerning the interpretation, effect, termination, validity, performance and/or breach of any sections of this agreement (any "Claim"), shall be resolved by final and binding arbitration ("Arbitration") before a single arbitrator (the "Arbitrator") selected from and administered by JAMS Inc. (the "Administrator") in accordance with its then existing arbitration rules or procedures regarding commercial or business disputes. The Arbitration shall be held in Orange County, California. BY AGREEING TO THIS BINDING ARBITRATION PROVISION, THE HOLDERS UNDERSTAND THAT, EXCEPT AS OTHERWISE AGREED TO IN WRITING BY THE MAKER, THEY ARE WAIVING CERTAIN RIGHTS AND PROTECTIONS WHICH MAY OTHERWISE BE AVAILABLE IF A CLAIM BETWEEN THE PARTIES WERE DETERMINED BY LITIGATION IN COURT, INCLUDING, WITHOUT LIMITATION, THE RIGHT TO A JURY TRIAL, CERTAIN RIGHTS OF APPEAL, AND A RIGHT TO INVOKE FORMAL RULES OF PROCEDURE AND EVIDENCE. (ROA 65 [Exhs. A, B at ¶ 15].)

Plaintiff King Shin Ship Management Co., Limited has not opposed the motion and does not dispute that it entered into the arbitration agreements, or that the agreements encompass all of its claims against Defendants. As such, the Court finds Defendants have met their burden of showing the existence of the arbitration agreements,

		while Plaintiff has not met its burden of showing a defense to enforcement. The motion to compel arbitration is granted. This action is stayed pending completion of the arbitration. (Code Civ. Proc., § 1281.4.) The Court sets an arbitration status conference for March 4, 2027 at 9AM in Department N18. Defendants shall give notice of the ruling and of the arbitration status conference.
10.	2025-1525455 Chatterfield vs. Yanez	The Court sustains Defendants Bettina Yanez, Peter Joseph Flanagan and Yanez & Associates Divorce and Family Law's Demurrer to Plaintiff Angela Chatterfield's Complaint with 20 days leave to amend. Plaintiff has 20 days leave to amend after receiving notice of this Order. Defendants' Motion to strike is mooted by the ruling on Demurrer. <u>Request for Judicial Notice</u> The request for judicial notice is granted. <u>Merits</u> Plaintiff alleges that Defendants represented her in an underling dissolution matter. (Compl., ¶10.) On July 21,2025, Plaintiff signed a retainer agreement with Yanez & Associates. (Compl., ¶15., Ex. Exhibit K.) Plaintiff paid a retainer of $25,000, which sum Plaintiff borrowed from her sister. (Compl., ¶16.) Plaintiff admits that Defendants refunded $16,024 to Plaintiffs sister keeping $8,976 for their services. (Compl., ¶130.) 1. <u>The Demurrer is sustained to the first and second causes of action for fraud.</u> In these two fraud claims, Plaintiff also alleges that Defendants lied to Plaintiff when asserting that: - A trial would be necessary to determine prenuptial agreement validity. - The burden of proof was on Plaintiff to prove the agreement invalid. - A $25,000 retainer was reasonable and necessary for this work. - Extensive witness preparation and expert testimony would be required

(Compl., ¶29.)

In her first two causes of action for fraud, Plaintiff incorrectly attributes language to specific Family Code statutes where such language does not exist; Plaintiff uses the fabricated language as the basis for her misrepresentation claims.

Concerningly, Plaintiff did not address the inaccurate statutory language in her opposition.

The Court admonishes Plaintiff that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. *(Petrosyan v. Prince Corp*. (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal Rules of Court, rule 1.6(15) [defines "parties" as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].)

"The elements of fraud that will give rise to a tort action for deceit are: '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' "(*Engalla v. Permanente Medical Group, Inc*. (1997) 15 Cal.4th 951, 974, internal quotation marks omitted; CACI 1900.) "The law is well established that actionable misrepresentations must pertain to past or existing material facts. Statements or predictions regarding future events are deemed to be mere opinions which are not actionable." (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469, internal citation omitted.)

The Court notes that some of these allegations are not made as to past or existing fact and thus not actionable as an intentional misrepresentation.

Plaintiff also alleges that her attorneys conspired with opposing Counsel with regard to a disagreement after an order of the court. (Compl., ¶¶87-88.)

California Rules of Court, rule 5.125(e)(1) expressly requires counsel to work together to prepare proposed orders after hearings where there is a disagreement about the proposed order. Far from being improper "conspiracy," meeting with opposing counsel to draft and finalize orders after a hearing is precisely what the Rules of Court require attorneys to do. Plaintiff's mischaracterization of mandatory procedural compliance as fraud demonstrates a fundamental misunderstanding of California family law practice and fails as a matter of law.

Moreover, Plaintiff's characterization of a Court Order from the underlying Family Law Judge is not well-taken.

Plaintiff has failed to state a claim.

Further, Plaintiff does not plead her claims with specificity. She lumps Defendant together and does not identify which Defendant made which specific representation, to whom, at what time, or in what context. (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 185.)

The Demurrer is sustained with leave to amend.

2. <u>The Demurrer is sustained to the third cause of action for malpractice.</u>

Plaintiff alleges that Defendants' representation fell below the standard of care because they said a trial would be necessary to determine validity of her prenuptial agreement/the burdens of proof/ and representation that $25k was needed. (Compl., ¶102.)

This overlaps with the arguments above where Plaintiff has cited the wrong statutes/misquotes the text of the statutes.

Plaintiff also alleges that Defendants withdrew from representation therefore "abandoning her". (Compl., ¶105.) An attorney may not withdraw from representation until the attorney has taken "reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel." (California Rules of Professional Conduct, ("Rule") 1.16(d).)

The Court sustains the Demurrer, however, given the inaccurate citations to Family Code sections, with leave to amend.

3. <u>The Demurrer is sustained to the fourth cause of action for breach of fiduciary duty.</u>

Defendants argue that this claim is duplicative.

This is a colorable argument. (See *Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 186; see Compl., ¶¶109-112.)

		The claims are the same. The Demurrer is sustained with leave to amend. 4. <u>The Demurrer is sustained to the fifth cause of action for breach of contract.</u> Plaintiff repeats her allegations that Defendants abandoned her by withdrawing as her counsel, thereby breaching the retainer agreement. (Compl., ¶127.) "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; CACI 303.) Here, Plaintiff does not point to any specific clause in the contract requiring continued representation. Moreover, Plaintiff's own verified Complaint challenges this conclusion, with reference to the exhibits. (*Barnett v. Fireman's Fund Ins. Co*. (2001) 90 Cal.App.4th 500, 505—"we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits"; *George v. Automobile Club of Southern Calif*. (2011) 201 CA4th 1112, 1130—"trial court was not required to credit plaintiff's allegations that extrinsic evidence 'renders the insurance contract at issue here ambiguous'" where language of policy attached to complaint showed otherwise.) Here, the exhibits attached to the Complaint show that on October 13, 2025, Plaintiff ordered Defendants in writing to cease all work until she received satisfactory answers to her questions regarding Family Code section 1615 and the burden of proof regarding the prenuptial agreement: "At this time, you are not authorized to file, draft, revise, or otherwise perform any further work or billable activity related to either the RFOs or any other pleadings in this case." (Compl., Ex. G.) Further, the Retainer Agreement is entered into between the corporate Defendant and Plaintiff; there is no allegation that Plaintiff entered into a contract with the individual Defendants. Thus, the Demurrer is sustained. The Court orders Defendants to serve notice.

11.	2025-1480066 Masaoka vs. ALHV, LLC	**DEMURRER** Defendant ALHV, LLC's general demurrer to Plaintiff's Complaint is sustained with 15 days leave to amend. As an initial matter, the Court has reviewed Plaintiff's opposition despite it being filed several days after the deadline. The Court notes that the oppositions to both motions violate CRC, Rule 3.1113(d) which limits the briefs to 15 pages. Plaintiff is instructed to appear at the hearing prepared to discuss his ability to continue to prosecute his claims given the statements in his briefs that Plaintiff is disabled and incompetent. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) <u>2nd cause of action for violations of the Elder and Dependent Adult Civil Protection Act, Welf. & Institutions Code, § 15600</u> Elder/dependent abuse & neglect is a statutory cause of action. Pursuant to Welfare & Institutions Code section 15657, a plaintiff is entitled to certain remedies if she proves "by clear and convincing evidence that a defendant is liable for physical abuse as defined in Section 15610.63, or neglect as defined in Section 15610.57, and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse." Welfare & Institutions Code section 15610.07 defines abuse of an elder or dependent adult as: (1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering. (2) The deprivation by a care custodian of goods or services that

are necessary to avoid physical harm or mental suffering.

(3) Financial abuse, as defined in Section 15610.30.

Plaintiff alleges that Decedent was an elder – 91 years old – when, as a result of the reckless neglect of Defendants, suffered a fall resulting in injury and harm. (Complaint, ¶¶ 69-71.)

Plaintiff must allege conduct distinct from just professional negligence of a healthcare provider, as elder abuse includes the egregious withholding of medical care and only applies to neglect that is at a minimum reckless (as opposed to just simple or gross negligence). (See *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 406–407; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 786; *Delaney v. Baker* (1999) 20 Cal.4th 23, 35; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 88.)

Here, Plaintiff's allegation of one fall is not sufficient to state a claim for elder abuse.

<u>3rd cause of action for violations of Resident Rights (Health & Safety Code, § 1430(b)</u>

Health & Safety Code §1430(b) states in part that "[a] current or former resident or patient of a skilled nursing facility, as defined in subdivision (c) of Section 1250, or intermediate care facility, as defined in subdivision (d) of Section 1250, may bring a civil action against the licensee of a facility who violates any rights of the resident or patient as set forth in the Patients' Bill of Rights in Section 72527 of Title 22 of the California Code of Regulations, or any other right provided for by federal or state law or regulation…"

As stated with respect to the second cause of action above, Plaintiff's claims are centered around one occurrence of a fall. Plaintiff fails to allege how Defendant violated Decedent's rights pursuant to § 1430(b).

<u>4th cause of action for unfair competition (Bus. & Prof. Code, § 17200.)</u>

Business & Professions Code, § 17200 prohibits "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising."

Plaintiff alleges that "Defendants' violations of The Elder and Dependent Adult Civil Protection Act and Resident Rights and other applicable provisions, as alleged herein, including Defendant's understaffing and its representations that it could care for Plaintiff when it could not, constitute unfair business practices in violation of Business & Professions Code §§17200, et seq." (Complaint, ¶ 81.)

Because the causes of action for elder abuse and violation of Resident Rights are insufficiently pled, Plaintiff's cause of action pursuant to § 17200 is also deficient. Plaintiff fails to allege an unlawful, unfair or fraudulent business practice.

Special demurrer

Defendant's special demurrer is overruled.

The Complaint is not so confusing that Defendant cannot determine how to respond. (See *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616; *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

MOTION TO STRIKE

Defendant ALHV, LLC's motion to strike portions of Plaintiff's Complaint is granted with 15 days leave to amend.

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).) A motion to strike can also strike legal conclusions. (*Weil & Brown*, Cal. Prac. Guide, *Civil Proc. before Trial*, ¶ 7:179 (2010).) Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (*Perkins v. Superior Court* (1981) 117 Cal.App. 3d 1, 6.)

Because Plaintiff fails to state sufficient facts to allege elder abuse, the allegations related to Plaintiff's punitive damages claims lack support. Code Civ. Proc., § 425.13 provides that "[i]n any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed…"

Additionally, Plaintiff's claims for pre-judgment interest and attorney fees are improperly pled as there is no legal authority that provides for these forms of relief given Plaintiff's remaining

		negligence claim. (See *Greater Westchester Homeowners Assn v. Los Angeles* (1979) 26 Cal. 3d 86, 102*; Curtis v. State of California* (1982) 128 Cal. App. 3d 668.) Defendant shall give notice of both rulings.